Temporary

4152

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of TWENTY-ONE THOUSAND DOLLARS ($21,000.00), certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of MAX L. HIRSCHHORN and BLANKA LEHMAN, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situated in the Borough of Manhattan, City County and State of New York, bounded and described as follows:

> All that certain lot of land, with the building and improvements thereon erected, beginning at a point on the northerly side of One hundred and fifteenth Street, distant ninety (90) feet westerly from the corner formed by the intersection of the northerly side of One hundred and fifteenth Street with the westerly side of Fourth, now Park Avenue; running thence northerly, parallel with Fourth, now Park Avenue, and part of the distance through a party wall, one hundred feet, eleven inches, to the centre line of the block; thence westerly, along the centre line of the block, twenty-five feet; thence southerly, parallel with Fourth, now Park Avenue, and part of the distance through a party wall, one hundred feet, ten inches, to the northerly side of One hundred and fifteenth Street; thence easterly along said northerly side of One hundred and fifteenth Street twenty-five feet to the place of beginning; said premises being known by the street number seventy-five east one hundred and fifteenth street.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the sale of said real estate has been received by the Alien Property Custodian, as shown by the appraisals of the property sold;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience as the sum received by this sale in excess of all appraisals is in excess of the value as indicated by appraisals;

(c) It appears that it is to the interest of the trust held, in that its value will be conserved by this sale by the substitution of the proceeds in lieu of the property sold, because of the difficulty of the administration of such real estate and its consequent deterioration;

(d) The character of this property is such that there are greater possibilities of a decrease in its value than an increase, and that such sale made at this time would, therefore, be to the best advantage of the trust.

CALVIN COOLIDGE

THE WHITE HOUSE,
February 7, 1925.

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GOVERNMENT PRINTING OFFICE